26-426 DEPT. OF HOMELAND SECURITY V. D.V.D.

DECISION BELOW: 2026 WL 2797801

LOWER COURT CASE NUMBER: 26-1212

QUESTION PRESENTED:

Order of September 29, 2026

The parties are directed to brief and argue the following questions: (1) Whether the district court had jurisdiction over Respondents' claims. (2) Whether the district court had authority to enter classwide declaratory relief and APA vacatur under 8 U. S. C. §1252(f)(1). (3) Whether the Government's Guidance on third-country removals is unlawful under 8 U. S. C. §1231(b), the Due Process Clause, or FARRA/CAT and its implementing regulations. (4) Such other questions that the Government determines are appropriate for the proper disposition of the case.

EXPEDITED BRIEFING SCHEDULE

CERT. GRANTED 9/29/2026